

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

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**Informal Docket No. 1954(F)**

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**TAYLORS RESOURCES, INC. d/b/a BRIDGEWATER LANDING, INC. (USA)**

**COMPLAINANT**

**v.**

**mitsui o.s.k. lines, ltd.**

**RESPONDENT**

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**ANSWER OF RESPONDENT MITSUI O.S.K. LINES, LTD. TO ORDER TO  
SUPPLEMENT THE RECORD**

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Respondent, Mitsui O.S.K. Lines, Ltd. ("MOL"), acting in the United States by and through its general agent, MOL (America) Inc., answers the Order to Supplement the Record, as follows:

**Answers to the Questions for Both Parties**

1. Yes. There are six email messages preceding the May 28, 2013 communication from Bridgewater to MOL, all relating to requests by MOL for assistance in contacting the consignee in China, after attempts by MOL's office in China proved futile. See attached MOL-089 – MOL-092.
2. Yes. The consignee, Tianjin Shanhai Jiafu Commercial Trade Co., Ltd., took delivery of container MOEU0717549 on June 27, 2013 in Xingang.
3. Not applicable.

4. Not applicable.
5. Not applicable.
6. Not applicable.
7. MOL's shipping agency issued the delivery order for MOLU26005541206 on June 14, 2013. The consignee, Tianjin Shanhai Jiafu Commercial Trade Co., Ltd., took delivery of container MOEU0717549 on June 27, 2013 in Xingang. Attached at MOL-093 – 094, as proof of delivery, is a copy of MOLU26005541206, stamped with the consignee's seal, along with a Request to Release Cargo Without Original Bill of Lading, in Chinese, which is also stamped with the consignee's seal, and is accompanied by a verified translation thereof (MOL-095 – MOL-097). It has never been explained to MOL why the same consignee failed to take delivery of container MOEU0108835.

**Answers to the Questions for MOL**

- A. As is standard practice, the consignee was initially notified of the arrival of container MOEU0108835 by way of an arrival notice, which was sent via facsimile (a copy of which could not be located by the destination office). Thereafter, MOL's shipping agency sent another written notice dated March 15, 2013 urging the consignee to pick up the goods. This notice was written in Chinese, and is attached as MOL-098. A verified translation thereof is attached as MOL-099 – MOL-101.

Unfortunately, the consignee failed to pick up the cargo. On April 18, 2013, MOL's office in China contacted MOL's office in the U.S. requesting assistance in reaching the shipper, Bridgewater. See, MOL-102 – MOL-106.

- B. On April 22, 2013, MOL sent Bridgewater an email advising that MOEU0108835 had arrived in Xingang, and that despite MOL China's repeated attempts to reach the consignee, the container had not been picked up. See, MOL-091 – MOL-092.
- C. Please refer to the answer in (B) above.
- D. The service contract extended to the Merchant 14 days free time (MOL-022). Detention charges accrued thereafter. On page 4 of MOL's Answer to the Amended Complaint, MOL responded to allegations of Bridgewater that MOL failed to notify Bridgewater of the failure of the consignee to take delivery of the cargo within a reasonable period of time. MOL's answer points out the fact that the free time extended to the Merchant 14 free days, and in addition, the bill of lading allowed the Merchant another 30 days within which to take delivery, before MOL might take any adverse action. In other words, according to the bill of lading and the service contract, the Merchant had a total of 44 days to take delivery of the cargo, before MOL might take any adverse action. However, those 44 days were not free days. According to the service contract between the parties, detention began to accrue after the expiration of 14 days free time. See, MOL-022.

The schedule of fees (MOL-112) states that the cargo was stored at the port for 718 days, until February 28, 2015. However, MOL did not regain the use of its container at that time. The cargo had to be subsequently transported to Hong Kong, and dumped. As indicated in MOL-089, MOL did not regain the use of the empty container until April 3, 2015. It is MOL's position that detention continued to accrue up until April 3, 2015.

In this case, the cargo arrived at Xingang on March 12, 2013, and the empty was returned April 3, 2015. This was a total of 752 days, during which MOL was deprived of the use of its equipment. Subtracting 14 free days leaves 738 days, which means MOL's demand actually understates the amount due. However, MOL will stand by its original demand.

Dated: Woodbridge, New Jersey  
May 31, 2017



Kevin J. Hartmann  
Hae Woen Grace Bae  
MOL (America) Inc.  
10 Woodbridge Center Drive, Suite 900  
Woodbridge, NJ 07095  
Tel: (732) 512-5200  
Fax: (732) 512-5290

*Attorneys for Respondent  
Mitsui O.S.K. Lines, Ltd.*

## Sean Nietzer - USNYCCLM

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**From:** bridgewater777@aol.com  
**Sent:** Tuesday, May 28, 2013 3:52 PM  
**To:** Toukta Phonharath - USCHIDOCEP  
**Cc:** Tony Lucas - USNYCSLS; Andrew Thorning - USNYCSLSSU; jk@taylorsresources.com  
**Subject:** long stay b/l 26005510205 /26005541206

Dear Toukta,

As you are probably aware there is great confusion in the China plastic scrap market due to the operation Green Fence policy enacted by the Chinese government. Our original consignee for this shipment has indicated material may not clear customs in Xingang. Every day this container collects more and more detention charges. We have another consignee lined up to take this container in Hong Kong and are requesting an economical rate so material may be unloaded from the container and MOL can have its container back. Can you help us.

Best Regards  
Kerri Keith

Bridgewater Landing Inc.  
Tel: 801-554-8703  
Fax: 732-865-7111

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-----Original Message-----

From: Toukta.Phonharath <Toukta.Phonharath@mol-liner.com>  
To: bridgewater777 <bridgewater777@aol.com>  
Cc: Tony.Lucas <Tony.Lucas@mol-liner.com>; Andrew.Thorning <Andrew.Thorning@mol-liner.com>; Toukta.Phonharath <Toukta.Phonharath@mol-liner.com>  
Sent: Thu, May 16, 2013 9:48 pm  
Subject: RE: // reminder //: long stay b/l 26005510205 - Bridgewater Landing Inc

Good Evening,

Please assist to advise.

Thank You,  
Toukta Phonharath

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Documentation Manager  
MOL (America) Inc.  
700 E. Butterfield Rd. Ste.250  
Lombard, IL 60148  
Tel: 1-800-449-7575  
Email: [toukta.phonharath@mol-liner.com](mailto:toukta.phonharath@mol-liner.com)  
Web: [www.molpower.com](http://www.molpower.com)

**\*\*Please note Effective April 1st our group email will change to [USCHIDOCEP@MOL-LINER.COM](mailto:USCHIDOCEP@MOL-LINER.COM)\*\***

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**From:** [bridgewater777@aol.com](mailto:bridgewater777@aol.com) [<mailto:bridgewater777@aol.com>]  
**Sent:** Wednesday, May 08, 2013 8:27 AM  
**To:** Toukta Phonharath - USCHIDOCEP  
**Subject:** Re: // reminder //: long stay b/l 26005510205 - Bridgewater Landing Inc

Toukta,

I will let you know. Thanks

Kerri  
Bridgewater Landing Inc  
Tel: 801-554-8703  
Fax: 732-865-7111

-----Original Message-----

From: Toukta.Phonharath <[Toukta.Phonharath@mol-liner.com](mailto:Toukta.Phonharath@mol-liner.com)>  
To: [bridgewater777@aol.com](mailto:bridgewater777@aol.com)  
Cc: mail.newjersey <[mail.newjersey@mol-ips.com](mailto:mail.newjersey@mol-ips.com)>; Tony.Lucas <[Tony.Lucas@mol-liner.com](mailto:Tony.Lucas@mol-liner.com)>; Andrew.Thorning <[Andrew.Thorning@mol-liner.com](mailto:Andrew.Thorning@mol-liner.com)>; Toukta.Phonharath <[Toukta.Phonharath@mol-liner.com](mailto:Toukta.Phonharath@mol-liner.com)>  
Sent: Tue, May 7, 2013 8:30 pm  
Subject: RE: // reminder //: long stay b/l 26005510205 - Bridgewater Landing Inc

Hi Kerri,

Please assist to advise any contact details you have for the Consignee so your destination office can contact them locally.

Thank You,  
Toukta Phonharath

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Documentation Manager  
MOL (America) Inc.  
700 E. Butterfield Rd. Ste.250  
Lombard, IL 60148  
Tel: 1-800-449-7575  
Email: [toukta.phonharath@mol-liner.com](mailto:toukta.phonharath@mol-liner.com)  
Web: [www.molpower.com](http://www.molpower.com)

**\*\*Please note Effective April 1st our group email will change to [USCHIDOCEP@MOL-LINER.COM](mailto:USCHIDOCEP@MOL-LINER.COM)\*\***

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**From:** [bridgewater777@aol.com](mailto:bridgewater777@aol.com) [<mailto:bridgewater777@aol.com>]  
**Sent:** Monday, May 06, 2013 1:25 PM  
**To:** Toukta Phonharath - USCHIDOCEP  
**Cc:** MAIL NEWJERSEY; Tony Lucas - USNYCSLS; Andrew Thorning - USNYCSLSSU  
**Subject:** Re: // reminder //: long stay b/l 26005510205 - Bridgewater Landing Inc

Hello Toukta,

Thank you for the update. I am working on trying to reach the Consignee.

Thanks!  
Kerri

In a message dated 5/6/2013 11:41:07 A.M. Eastern Daylight Time, [Toukta.Phonharath@mol-liner.com](mailto:Toukta.Phonharath@mol-liner.com) writes:

| Good Morning,

Just left a voicemail at 801-554-8703, please assist to check and advise or forward to the correct person in charge. The container landed in Xingang on 3-12 and we are unable to contact the Consignee.

Thank You,

Toukta Phonharath

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Documentation Manager

MOL (America) Inc.

700 E. Butterfield Rd. Ste.250

Lombard, IL 60148

Tel: 1-800-449-7575

Email: [toukta.phonharath@mol-liner.com](mailto:toukta.phonharath@mol-liner.com)

Web: [www.molpower.com](http://www.molpower.com)

\*\*Please note Effective April 1st our group email will change to [USCHIDOCEP@MOL-LINER.COM](mailto:USCHIDOCEP@MOL-LINER.COM)\*\*

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From: Toukta Phonharath - USCHIDOCEP

Sent: Monday, April 22, 2013 10:46 AM

To: [bridgewater777@aol.com](mailto:bridgewater777@aol.com)

Cc: MAIL NEWJERSEY; Toukta Phonharath - USCHIDOCEP

Subject: RE: // reminder //: long stay b/l 26005510205

Good Morning,

Please find the below message from our destination office and assist to advise:

ATA XINGANG: MAR 12,2013

M/V: MOL LOIRE 8702B

SHPR: BRIDGEWATER LANDING INC.

CNEE: TIANJIN SHANHAI JIAFU COMMERCIAL TRADE CO., LTD.

Cnee still did not come to switch D/O although we sent arrival notice via fax & pushed them for many times. We checked with cnee's agent instead but they have no mind on this shpt. The phone no. on manifest is out of service now, pls urgently adv shpr to push cnee fm your side. Tks.

Thank You,

Toukta Phonharath

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Documentation Manager

MOL (America) Inc.

700 E. Butterfield Rd. Ste.250

Lombard, IL 60148

Tel: 1-800-449-7575

Email: [toukta.phonharath@mol-liner.com](mailto:toukta.phonharath@mol-liner.com)

Web: [www.molpower.com](http://www.molpower.com)

\*\*Please note Effective April 1st our group email will change to [USCHIDOCEP@MOL-LINER.COM](mailto:USCHIDOCEP@MOL-LINER.COM)\*\*

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YANG-132 4.14

**MOL Mitsui O.S.K. Lines, Ltd.**

**BILL OF LADING NON-NEGOTIABLE (COPY)**

|                                                                                                                                                                                                                                                              |                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| <b>Shipper/Exporter</b><br>BRIDGEWATER LANDING INC.<br>700 FENNELL DRIVE<br>RESACA, GA 30735                                                                                                                                                                 |                                             | <b>Booking No.</b> 26005541206-A<br><b>B/L No.</b> MOLU26005541206<br><b>Export References</b> 12368<br><div style="font-size: 2em; color: blue; margin-top: 10px;">481920</div>                                                                                                                                                                                                                                                               |  |
| <b>Consignee (Not negotiable unless consigned 'to order')</b><br>TIANJIN SHANHAI JIAFU COMMERCIAL/TRADE CO., LTD.<br>ROOM 301, NO 1, BUILDING C, DISTRICT 1<br>JIN BIN JIE ZUO, 4TH AVE TEDA<br>TIANJIN, CHINA 300457<br>TEL: 022-59851558 FAX: 022-59851560 |                                             | <b>Forwarding Agent</b><br><br>                                                                                                                                                                                                                                                                                                                                                                                                                |  |
| <b>Notify Party</b><br>SAME AS CONSIGNEE<br><div style="font-size: 1.5em; color: blue; margin-top: 10px;">27/11 920313</div>                                                                                                                                 |                                             | Declared value subject to clause 6(2) overleaf. If no value declared, liability limit applies as per clause 5(2)(C), 6(1), or 20 as applicable. Shipper's Declared Value USD:<br><br>Also Notify -- Export Instructions (For Merchant's Reference only)<br>THESE COMMODITIES, TECHNOLOGY, OR SOFTWARE WERE EXPORTED FROM THE UNITED STATES IN ACCORDANCE WITH THE EXPORT ADMINISTRATION REGULATION, DIVERSION CONTRARY TO U.S. LAW PROHIBITED. |  |
| <b>Pre-Carriage By</b><br><br>                                                                                                                                                                                                                               | <b>Place of Receipt</b><br>ATLANTA, GA - CY | <b>Point and Country of Origin of Goods (For Merchant's Reference only)</b><br>UNITED STATES                                                                                                                                                                                                                                                                                                                                                   |  |
| <b>Ocean Vessel/Voy. No.</b> 047E<br>MOL PROFICIENCY                                                                                                                                                                                                         | <b>Port of Loading</b><br>JACKSONVILLE, FL  | <b>Loading Pier Terminal</b><br>JACKSONVILLE - TRAPAC TERMINAL                                                                                                                                                                                                                                                                                                                                                                                 |  |
| <b>Port of Discharge</b><br>XINGANG                                                                                                                                                                                                                          | <b>Place of Delivery</b><br>XINGANG - CY    | <b>Final Destination for Merchant's Reference</b><br><br>                                                                                                                                                                                                                                                                                                                                                                                      |  |

| Container No. / Seal No. / Marks & Nos. | No. of Containers or Packages | HTS                                    | Type or Kind of Containers or Packages - Description of Goods                                                                                                             | Gross Weight               | Measurement              |
|-----------------------------------------|-------------------------------|----------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------|--------------------------|
| MOEU0717549/C506325# /C5                | 1                             | SED Not Required-AES(#X20130213047934) | FREIGHT PREPAID. SHIPPER'S LOAD AND COUNT.<br>1 X 45' HIGH CUBE CONTAINER<br>SAID TO CONTAIN:<br><br>51 PIECES<br>PLASTIC SCRAPS<br><br>14 DAYS DETENTION FREE IN XINGANG | 38306.000LB<br>17375.000KG | 2295.453 F3<br>65.000 M3 |

"NOTWITHSTANDING ANY PROVISIONS OVERLEAF IN RELATION TO GENERAL AVERAGE, THE CARRIER IS AT ITS DISCRETION ENTITLED TO STIPULATE WHICH VERSION OF THE YORK ANTWERP RULES BEING EITHER THOSE OF 1974 AS AMENDED IN 1990, OR 1994 OR 2004 WILL APPLY TO THE ADJUSTMENT OF SUCH GENERAL AVERAGE"

Total number of Containers or other packages or units received by the Carrier (in words): **ONE CONTAINER**

| Code | Tariff Item | Basis | Freighted As | Curr. | Rate | Per | Prepaid | Collect |
|------|-------------|-------|--------------|-------|------|-----|---------|---------|
|      |             |       |              |       |      |     |         |         |

|                                      |                        |                                                  |                |
|--------------------------------------|------------------------|--------------------------------------------------|----------------|
| LADEN ON BOARD THE VESSEL 02-22-2013 | No. of Originals THREE | Place and Date of B/L Issue: NEW YORK 02-22-2013 | Totals Pay At: |
|--------------------------------------|------------------------|--------------------------------------------------|----------------|

RECEIVED in apparent external good order and condition except as otherwise noted the total number of Containers or other packages or units enumerated above for transportation from the Place of Receipt to the Place of Delivery subject to the terms hereof. One of the original Bills of Lading must be surrendered duly endorsed in exchange for the Goods or Delivery Order unless otherwise provided herein. In accepting this Bill of Lading the Merchant expressly accepts and agrees to all its terms whether printed, stamped or written, or otherwise incorporated, notwithstanding the non-signing of this Bill of Lading by the Merchant.

IN WITNESS whereof the number of original Bills of Lading stated above have been signed, one of which being accomplished, the others to be void.

(The terms and conditions of the Bill of Lading concerned on the back hereof)

**Mitsui O.S.K. Lines, Ltd., as Carrier**

By MOL (AMERICA) INC. As Agents

## 无正本提单放货申请函

致：商船三井（中国）有限公司及

中国天津外轮代理有限公司

关于：船名：日洲 航次：920313 提单号：MOLU6005541206

承运人：株式会社商船三井（Mitsui O.S.K. Lines, Ltd.）

上述货物系我司的进口货物。托运人\_\_\_\_\_已将全套正本提单退还承运人或未要求承运人签发正本提单，我司现要求凭本无正本提单放货申请函换取小提单（提货单），请准许。为此，我司承诺如下：

1、如因你司未凭正本提单放货使你司、承运人、承运船舶、船舶所有人、租船人、船长和承运人的代理人涉讼、受到他人索赔、产生任何责任、损失和费用，包括诉讼费用、律师费，我方将对你司或相关当事人作出足额赔偿，使你司或相关当事人免受任何损失。

2、如因交付上述货物使你司和任何前条所列的当事人涉讼、受到他人索赔，我司将应你司或相关当事人的要求，及时直接出面进行处理或直接介入诉讼，或者提供足够的资金供应诉之需或进行赔付。

3、及时办理海关清关手续、提取货物、拆箱并将集装箱归还承运人或其代理人。

如我司不能在免费用箱期内提货并归还集装箱，我司同意按你司或承运人在天津新港执行的集装箱超期使用费标准向你司或承运人的其他代理人支付集装箱超期使用费。我司特此确认，我司知晓承运人在天津新港地区执行的集装箱超期使用费标准，并同意此标准适用于上述货物。

4、如载货集装箱因货方原因发生损坏、灭失、脏污，我司将及时向你司或承运人的其他代理人支付集装箱的修理费、清洗费或赔偿集装箱的残值。

5、如我司拒不承担上述相关责任，贵司或承运人有权在自提货单签发之日起的两年期限内起诉我司。

特此申请。

收货人（盖公章）：\_\_\_\_\_

\_\_\_\_\_年\_\_\_\_月\_\_\_\_日

## REQUEST TO RELEASE CARGO WITHOUT ORIGINAL BILL OF LADING

TO: MOL (China) Co., Ltd. and  
China Ocean Shipping Agency Tianjin

RE: Ship Name: MOL Proficiency, Voyage No.: 920313;  
Bill of Lading No.: MOLU26005541206

Carrier: MITSUI O.S.K. LINES, LTD.

The above-mentioned goods are our imported goods. The shipper \_\_\_\_\_ has returned a full set of the original bill of lading to the carrier or did not require the carrier to issue the original bill of lading, we now request to use this *REQUEST TO RELEASE CARGO WITHOUT ORIGINAL BILL OF LADING* in exchange for a small bill of lading (delivery order). Please allow. For this reason, our commitment is as follows:

1. In the event that your company, the carrier, the carrying vessel, the ship owner, the charterer, the master and the carrier's agent are involved in any lawsuits, claims, liabilities, losses and expenses for releasing the cargo without the original bill of lading, Including litigation costs and attorneys' fees, we will make full compensation to you or the parties concerned, so to protect you or the parties concerned against any losses.
2. In the event that your company and any of the aforementioned parties are involved in any lawsuits or claims as the result of the delivery of the above mentioned goods, we shall promptly come forward to proceed or engage in the lawsuits directly at the request of your company or the parties concerned, or provide sufficient funds as needed or provide compensation.
3. Timely conduct customs clearance procedures, take delivery of the goods, conduct devanning operations and return the container to the carrier or its agent. If we fail to take delivery of the goods and return the container within the free demurrage timeframe, we agree to pay the container detention fee to your company or other agents of the carrier according to the standard of container detention fee executed by your company or carrier in Tianjin Xingang. We hereby confirm that we understand the carrier's container detention fee standard implemented in Tianjin Xingang area, and agree that this standard applies to the above-mentioned cargo.
4. In the event that the container for the above mentioned cargo is damaged, lost or dirty due to the reasons of the shipper, we will timely compensate your company or other agents of the carrier the repair fee and cleaning fee or compensate for the residual value of the container.

5. If we refuse to bear the aforementioned responsibilities, your company or the carrier has the right to file a lawsuit against us within two years from the date of the issuance of the bill of lading.

We hereby apply for this request.

Consignee (Company Seal) : \_\_\_\_\_

Date \_\_\_\_\_

**VERIFICATION OF TRANSLATION**

I, QinQin McCarthy, do verify, under penalty of perjury, that the translation I have rendered of the attached documents titled *REQUEST TO RELEASE CARGO WITHOUT ORIGINAL BILL OF LADING* is a true and accurate translation.

May 10, 2017



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QinQin McCarthy  
Translator  
Xinxi Xinxi LLC  
277 19<sup>th</sup> Street, Unit 4C  
Brooklyn, NY 11215



## 催提通知单

您单位下列进口货物已抵港, 请速凭正本提单并背书后来我公司办理提货手续

海关编号: 130307

预计抵港时间: 20130312

船名: MOL LOIRE

航次: 8702B

预计靠泊时间:

提单号: MOLU26005510205

放货方式:

敬启者:

为了使您到新港顺利提货, 特提供下列注意事项供您参考:

1、根据中华人民共和国海关法规定:“海运进口货物之收货人必须在船舶申报进境之日起十四天内向海关申报, 过期由海关收取滞报金, 而且货物在三个月内不申报提取, 将作为无主货处理。”

2、凭正本提单, 加盖提单收货人单位公章后到我司进口科办理提货手续。

3、本人亲自提取私人行李或托带物品, 除携带正本提单外, 尚需出示本人护照, 如委托他人代办, 除仍需携带有关文件单证外, 代办人还需携带代办委托书和代办人员身份证。

4、如需委托我司代办报关及转运事宜, 请提前电话联系。

5、本通知仅为方便收货人尽快提货, 避免发生滞报和货物在港口积压而产生额外费用, 不以此做为提货凭据。如系英文翻译中文所发生的人名、地址不一致以及不能寄达等原因, 我公司不承担由此产生的责任, 希谅

具体描述:

发货人:

BRIDGEWATER LANDING INC.  
700 FENNELL DRIVE  
RESACA, GA 30735

收货人:

TIANJIN SHANHAI JIAFU COMMERCIAL TR  
ADE CO., LTD. ROOM 301, NO 1, BUILD  
ING C, DISTRICT 1, JIN BIN JIE ZUO,  
4TH AVE TEDA TIANJIN, CHINA 300457  
TEL: 022-59851558 FAX: 022-59851

通知方:

SAME AS CONSIGNEE

| 货物序号 | 货物名称 | 件数 | 包装  | 毛重 (KG)  | 体积 (M3) |
|------|------|----|-----|----------|---------|
| 1    |      | 32 | PCE | 17990.00 | 65.000  |

| 序号 | 箱号          | 铅封号     | 尺码 | 箱型 | 毛重       | 皮重      | 状态 |
|----|-------------|---------|----|----|----------|---------|----|
| 1  | MOEU0108835 | 3114896 | 45 | HC | 17990.00 | 4820.00 | F  |

备注:

时间: 2013/03/15

电话: 022-66706833

传真: 022-66706821 66706831

电传: 23164 XGPEN CN 邮编: 300461

MOL-098

联系地址: 天津港保税区跃进路1号—国际航运中心



From: ZHANG, LAN To:

Co-Fax paperless fax

## China Ocean Shipping Agency Tianjin

### Notice of Delivery

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The following imported goods of your company have arrived at the port, please proceed with the delivery procedures with the endorsed original bill of lading at our company

Customs Code: 130307

Estimated arrival date: 20130312

name: MOL LOIRE, Voyage No.: 8702B; Bill of Lading No.: MOLU26005510205 Shipping Method:

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To Whom It May Concern:

In order for you to take delivery of goods at Xingang, the following precautions are provided for your reference:

1. In accordance with the provisions of the Customs Law of the People's Republic of China:  
"The consignee of the imported goods through ocean shipping must declare to the customs within 14 days from the date of declaration of the ship's entry, and the customs will collect a fee for any delayed declaration; goods not declared and delivered within three months will be handled as a unclaimed cargo.
2. Please proceed with the delivery procedures at our Import Division with the original bill of lading stamped with the official consignee seal of the bill of lading.
3. If the consignee personally claims personal baggage or items carried for others, in addition to providing the original bill of lading, the consignee also needs to produce personal passport, and if an agent is commissioned to claim the items, in addition to provide the relevant documents, the agent also needs to provide the letter of authorization and personal identification.
4. If you need to entrust our company to declare and transfer the shipment, please contact us in advance.
5. This notice is only for the convenience of the consignee to take delivery as soon as possible and to avoid additional costs incurred due to delayed customs clearance and extended storage at the port, however this notice may not be used as a delivery evidence. Our company does not assume any responsibilities if names and addresses are inconsistent due to translation from English to Chinese or for other reasons that the shipment cannot be delivered. Thank you for your understanding.

Specific Description:

Shipper:

BRIDGEWATER LANDING INC.  
700 FENNELL DRIVE

Consignee

TIANJIN SHANHAI JIAFU COMMERCIAL  
TRADE CO., LTD. ROOM 301, NO 1,

RESACA, CA 30735

BUILDING C, DISTRICT 1, JIN BIN JIE ZUO,  
4TH AVE TEDA TIANJIN, CHINA 300457  
TEL: 022-59851558 FAX: 022-59851

Notification Party : Same as consignee

| Serial number of goods | Item name | Quantity | Package | Gross weight (kg) | Volume (M3) |
|------------------------|-----------|----------|---------|-------------------|-------------|
| 1                      |           | 32       | PCE     | 17990.00          | 65,000      |

| Serial number | Container No. | Seal No. | Size | Container Type | Gross Weight | Tare Weight | Status |
|---------------|---------------|----------|------|----------------|--------------|-------------|--------|
| 1             | MOEU0108825   | 3114896  | 45   | HC             | 17990.0      | 482000      | F      |

Note :

Date : 2013/03/15

TEL: 022-66706833

FAX: 022-66706821 66706831

ADDRESS: No. 1, Yuejin Road, Free Trade Zone, Tianjin, China 300461

China Ocean Shipping Agency Tianjin Designated Seal for Notice of Delivery

**VERIFICATION OF TRANSLATION**

- I, QinQin McCarthy, do verify, under penalty of perjury, that the translation I have rendered of the attached documents titled *Notice of Delivery* is a true and accurate translation.

May 31, 2017



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QinQin McCarthy  
Translator  
Xinxi Xinxi LLC  
277 19<sup>th</sup> Street, Unit 4C  
Brooklyn, NY 11215

## Grace Bae - USNYCRLI

---

**From:** Toukta Phonharath - USATLDOCSV  
**Sent:** Thursday, May 16, 2013 9:49 PM  
**To:** Audrey Liu - CNTSNCUS  
**Cc:** Michael Yan - CNTSNSLS; Emily Yang - CNTSNCSD; Betty Qiu - CNTSNOPE; Bobby Cui - CNTAOGAF; MAIL NEWJERSEY  
**Subject:** RE: // reminder //: long stay b/l 26005510205

Dear Audrey,

Shipper is still checking and has not advised, we will reconfirm you once available.

Thank You,

Toukta Phonharath

-----  
Documentation Manager  
MOL (America) Inc.  
700 E. Butterfield Rd. Ste.250  
Lombard, IL 60148  
Tel: 1-800-449-7575  
Email: [toukta.phonharath@mol-liner.com](mailto:toukta.phonharath@mol-liner.com)  
Web: [www.molpower.com](http://www.molpower.com)

**\*\*Please note Effective April 1st our group email will change to USCHIDOCEP@MOL-LINER.COM\*\***

---

**From:** Audrey Liu - CNTSNCUS  
**Sent:** Thursday, May 16, 2013 4:09 AM  
**To:** Toukta Phonharath - USCHIDOCEP  
**Cc:** Michael Yan - CNTSNSLS; Emily Yang - CNTSNCSD; Betty Qiu - CNTSNOPE; Bobby Cui - CNTSNEXE; MAIL NEWJERSEY  
**Subject:** 答复: // reminder //: long stay b/l 26005510205

Dear Toukta,

Any updated news fm shpr?

Best Regards  
Audrey Liu  
Import Customer Service & Documentation  
MOL( China) Co., Ltd. Tianjin Branch  
Tel: 86-22-83311323  
website: [www.molpower.com](http://www.molpower.com)



---

发件人: Audrey Liu - CNTSNCUS  
发送时间: 2013 年 5 月 7 日 14:18  
收件人: Toukta Phonharath - USCHIDOCEP  
抄送: Michael Yan - CNTSNSLS; Emily Yang - CNTSNCSD; Betty Qiu - CNTSNOPE; Bobby Cui - CNTSNEXE; MAIL NEWJERSEY  
主题: 答复: // reminder //: long stay b/l 26005510205

Dear Toukta,

Thank you very much. Could you adv shpr to provide us cnee's valid contact way?

Best Regards  
Audrey Liu  
Import Customer Service & Documentation  
MOL( China) Co., Ltd. Tianjin Branch  
Tel: 86-22-83311323  
website: [www.molpower.com](http://www.molpower.com)



Count On MOL.

---

发件人: Toukta Phonharath - USCHIDOCEP  
发送时间: 2013 年 5 月 7 日 12:43  
收件人: Audrey Liu - CNTSNCUS  
抄送: Michael Yan - CNTSNSLS; Emily Yang - CNTSNCSD; Betty Qiu - CNTSNOPE; Bobby Cui - CNTSNEXE; MAIL NEWJERSEY  
主题: RE: // reminder //: long stay b/l 26005510205

Dear Audrey,

I called and also sent a msg to Shipper again today. They are reaching out to Consignee.

Thank You,  
Toukta Phonharath

-----  
Documentation Manager  
MOL (America) Inc.  
700 E. Butterfield Rd. Ste.250  
Lombard, IL 60148  
Tel: 1-800-449-7575  
Email: [toukta.phonharath@mol-liner.com](mailto:toukta.phonharath@mol-liner.com)  
Web: [www.molpower.com](http://www.molpower.com)

**\*\*Please note Effective April 1st our group email will change to [USCHIDOCEP@MOL-LINER.COM](mailto:USCHIDOCEP@MOL-LINER.COM)\*\***

---

**From:** Audrey Liu - CNTSNCUS  
**Sent:** Monday, May 06, 2013 2:29 AM

**To:** Toukta Phonharath - USCHIDOCEP

**Cc:** Michael Yan - CNTSNLS; Emily Yang - CNTSNCS; Betty Qiu - CNTSNOPE; Bobby Cui - CNTSNEXE; MAIL NEWJERSEY

**Subject:** 答复: // reminder //: long stay b/l 26005510205

Dear Toukta,

No, containers were not picked up, even D/O was not switched by cnee yet. So we need your assistance to have shpr to push fm your side.

Best Regards

Audrey Liu

Import Customer Service & Documentation

MOL( China) Co., Ltd. Tianjin Branch

Tel: 86-22-83311323

website: [www.molpower.com](http://www.molpower.com)



Count On MOL.

---

发件人: Toukta Phonharath - USCHIDOCEP

发送时间: 2013 年 5 月 4 日 2:48

收件人: Audrey Liu - CNTSNCS

抄送: Michael Yan - CNTSNLS; Emily Yang - CNTSNCS; Betty Qiu - CNTSNOPE; Bobby Cui - CNTSNEXE; MAIL NEWJERSEY

主题: RE: // reminder //: long stay b/l 26005510205

Dear Audrey,

I show containers are already picked up? Please advise.

Thank You,

Toukta Phonharath

-----  
Documentation Manager

MOL (America) Inc.

700 E. Butterfield Rd. Ste.250

Lombard, IL 60148

Tel: 1-800-449-7575

Email: [toukta.phonharath@mol-liner.com](mailto:toukta.phonharath@mol-liner.com)

Web: [www.molpower.com](http://www.molpower.com)

**\*\*Please note Effective April 1st our group email will change to [USCHIDOCEP@MOL-LINER.COM](mailto:USCHIDOCEP@MOL-LINER.COM)\*\***

---

**From:** Audrey Liu - CNTSNCS

**Sent:** Friday, May 03, 2013 4:13 AM

**To:** Toukta Phonharath - USCHIDOCEP

**Cc:** Michael Yan - CNTSNSLS; Emily Yang - CNTSNCSO; Betty Qiu - CNTSNOPE; Bobby Cui - CNTSNEXE; MAIL NEWJERSEY

**Subject:** 答复: // reminder //: long stay b/l 26005510205

Dear Toukta,

Any news fm shpr?

Best Regards

Audrey Liu

Import Customer Service & Documentation

MOL( China) Co., Ltd. Tianjin Branch

Tel: 86-22-83311323

website: [www.molpower.com](http://www.molpower.com)



Count On MOL.

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发件人: Toukta Phonharath - USCHIDOCEP

发送时间: 2013 年 4 月 22 日 23:46

收件人: Audrey Liu - CNTSNCUS

抄送: Michael Yan - CNTSNSLS; Emily Yang - CNTSNCSO; Betty Qiu - CNTSNOPE; Bobby Cui - CNTSNEXE; MAIL NEWJERSEY; Toukta Phonharath - USCHIDOCEP

主题: RE: // reminder //: long stay b/l 26005510205

Dear Audrey,

We are checking with Shipper and will advise.

Thank You,

Toukta Phonharath

-----  
Documentation Manager

MOL (America) Inc.

700 E. Butterfield Rd. Ste.250

Lombard, IL 60148

Tel: 1-800-449-7575

Email: [toukta.phonharath@mol-liner.com](mailto:toukta.phonharath@mol-liner.com)

Web: [www.molpower.com](http://www.molpower.com)

**\*\*Please note Effective April 1st our group email will change to [USCHIDOCEP@MOL-LINER.COM](mailto:USCHIDOCEP@MOL-LINER.COM)\*\***

---

**From:** Audrey Liu - CNTSNCUS

**Sent:** Monday, April 22, 2013 1:39 AM

**To:** Toukta Phonharath - USCHIDOCEP; CHIDC - DOCUMENTATION CENTER

**Cc:** Michael Yan - CNTSNSLS; Emily Yang - CNTSNCSO; Betty Qiu - CNTSNOPE; Bobby Cui - CNTSNEXE

**Subject:** // reminder //: long stay b/l 26005510205

// kind reminder //

Best Regards

Audrey Liu

Import Customer Service & Documentation

MOL( China) Co., Ltd. Tianjin Branch

Tel: 86-22-83311323

website: [www.molpower.com](http://www.molpower.com)



Count On MOL.

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发件人: Audrey Liu - CNTSNCUS

发送时间: 2013 年 4 月 18 日 16:29

收件人: Toukta Phonharath - USCHIDOCEP; CHIDC - DOCUMENTATION CENTER

抄送: Michael Yan - CNTSNSLS; Emily Yang - CNTSNCS; Betty Qiu - CNTSNOPE; Bobby Cui - CNTSNEXE

主题: long stay b/l 26005510205

Dear Toukta,

B/L# 26005510205

ATA XINGANG: MAR 12,2013

M/V: MOL LOIRE 8702B

SHPR: BRIDGEWATER LANDING INC.

CNEE: TIANJIN SHANHAI JIAFU COMMERCIAL TRADE CO., LTD.

Cnee still did not come to switch D/O although we sent arrival notice via fax & pushed them for many times. We checked with cnee's agent instead but they have no mind on this shpt. The phone no. on manifest is out of service now, pls urgently adv shpr to push cnee fm your side. Tks.

Best Regards

Audrey Liu

Import Customer Service & Documentation

MOL( China) Co., Ltd. Tianjin Branch

Tel: 86-22-83311323

website: [www.molpower.com](http://www.molpower.com)



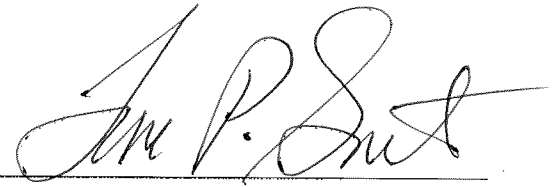
Count On MOL.

**VERIFICATION**

I declare that I am Vice President, Trans-Pacific Trade of MOL (America) Inc., the general agent of Respondent, Mitsui O.S.K. Lines, Ltd., and that the foregoing Answer is true to the best of my information and belief; and that the grounds of my belief as to all matters not upon my own personal knowledge is information and records within the possession, custody or control of the Respondent.

I verify under penalty of perjury that the foregoing is true and correct.

May 31, 2017

A handwritten signature in cursive script, appearing to read "Tom P. Smart", written over a horizontal line.

Tom P. Smart  
MOL (America) Inc.  
10 Woodbridge Center Drive, Suite 900  
Woodbridge, NJ 07095

### **Certificate of Service**

I hereby certify that I have this 31<sup>st</sup> day of May, 2017, served a copy of the foregoing Answer upon the following by e-mail, and copies by courier shall follow:

Secretary  
Federal Maritime Commission  
800 N. Capitol Street, NW.  
Washington, DC 20573-0001  
(secretary@fmc.gov)

Jack Chiang  
Taylors Resources Inc. d/b/a Bridgewater Landing Inc.  
51 Cragwood Road, Suite 301  
South Plainfield, NJ 07080  
(bridgewater1919@yahoo.com)

I further certify that the electronic copy of the Response Brief served by e-mail is a true and correct copy of the paper original, and that the signed paper original and five (5) copies are being forwarded to the Secretary of the Commission via courier.

  
\_\_\_\_\_  
Hae Woen Grace Bae